

2. S-PR-0010429 Ugo G Cuneo & Leonora Cuneo Rev Trust; In re the

Calendar notes are not yet available for this matter. Please check back for updated notes.

3. S-PR-0011966 In Re the Luri Gemora Rev Trust

Calendar notes are not yet available for this matter. Please check back for updated notes.

4. S-PR-0012076 In Re the Rigler Fam 1996 Irrev Trust

Clarification is needed: trustees allege that they "identified expenditures incurred" which "should not have been paid" and which are included in "the Note Receivable of \$35,644.33." Trustees should explain the origin and terms of this note, including promisor and terms of payment.

5. S-PR-0012172 In Re the Estate of Putnam, Virginia

Calendar notes are not yet available for this matter. Please check back for updated notes.

6. S-PR-0012748 In Re the Estate of Stefani, Barbara Ann

Missing notice of hearing for petition for final distribution. Notice previously filed was for a hearing on July 17 that never occurred. The matter was rescheduled by the court, then rescheduled again at petitioner's request. No other notice was ever filed or served.

The report and account are not supported by any acceptable inventory. Both the original and revised I&A's impermissibly include personal representative appraisal of personal property. Personal representative may not appraise any property, personal or real, other than cash or cash equivalents. Referee appraisal is required of all personal property, including all items of jewelry.

Administrator impermissibly reports disposition of estate vehicle as both an unauthorized preliminary distribution resulting from conversion by Tera Stefani and as a sale resulting in gain on sale. An asset cannot both have been impermissibly distributed to an heir and sold by the estate. Any action by a distributee after distribution is immaterial to the estate, its administration, and administrator's account. Administrator offers no basis to value the distribution at anything other than the I&A value for the vehicle.

Administrator response is needed: administrator argues that Tera Stefani converted more than \$155,597 in estate assets. Administrator offers no explanation for the failure to safeguard or attempt to recover any assets so converted by Tera Stefani.

It is recommended counsel's requested extraordinary fees be reduced to \$2,250.00, comprising 3.5 hours of attorney time at \$400/hr and 4.25 hours of paralegal time at \$200/hr. The requested attorney rate exceeds a reasonable rate for the services described in counsel's declaration. The requested paralegal rate is exceptionally inflated for the services described in counsel's declaration.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

7. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Calendar notes are not yet available for this matter. Please check back for updated notes.

8. S-PR-0013289 In Re the Estate of Wiley, Peter Cornelius

Petitioner response is needed: petitioner reports that estate real property was sold for \$525,000. The allegations instead establish that no real property was sold (real property remains in the estate; there are no proceeds of sale in the estate). Petitioner and other heirs appear to have agreed upon a valuation for distribution of the property. Valuation change for distribution purposes does not constitute sale of property. Because no sale occurred, there is also no gain on sale of real property for any purpose, including calculation of attorney fees.

Proposed distribution is contrary to intestacy. As prayed, petitioner would receive approximately 20.4% of the estate; Chornyy, 26.5%; and D Wiley 53%. Intestacy requires equal distributions of assets determined by date-of-distribution value; petitioner offers no factual or legal basis for unequal distributions of the estate.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

9. S-PR-0013436 In Re the Stephen Sankoff Liv Trust

Appearance is required for continued hearing on petition to determine 2015 deed is invalid and to determine trust property.

10. S-PR-0013480 In Re the Estate of Brooks, Arnold F.

Petition for final distribution is recommended for approval as prayed.